NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- V)

C.P. (CAA)-26/ND/2022

IN THE MATTER OF SCHEME OF AMALGAMATION:

APIS NATURAL PRODUCTS PRIVATE LIMITED
.....Applicant No. 1/Transferor Company No. 1

AND

MODERN HERBALS PRIVATE LIMITED
.....Applicant No. 2/Transferor Company No. 2

WITH

APIS INDIA LIMITED
.....Applicant No. 3/Transferee Company

Order Delivered on: 23.03.2022

Section: 230 to 232 of the Companies Act, 2013

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MR.ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)
MR. HEMANT KUMAR SARANGI, MEMBER (TECHNICAL)

PRESENT

For the Applicants: PCS Abhishek Nahta

ORDER
AS PER MR. ABNI RANJAN KUMAR SINHA, MEMBER (JUDICIAL)

This Company Petition jointly filed by the Applicant Companies is coming before us for admission, fixing a date for hearing and final

disposal of the Application as well as for a direction for publication and issuance of notices to the concerned authorities for objections, if any, to the Composite Scheme of Amalgamation (hereinafter, referred to as the **"SCHEME"**) contemplated between the Applicants, which will take effect from the Appointed Date of 01.04.2019.

2. As per the averments, the Registered offices of the Applicant Company No. 2 and 3 are located in Delhi and hence, falling within the territorial jurisdiction of this Bench. In respect of the Applicant Company No. 1, it is stated that the registered office is situated in Punjab. However, Principal Bench vide order dated 24.09.2019 has allowed the Applicant Company No. 1, namely, APIS Natural Products Private limited to file a consolidated petition along with Applicant Company No. 2 and 3 in NCLT Delhi.

3. From the case records, it is seen that the First Motion seeking directions for convening/dispensing the meeting of Shareholders, Secured Creditors and Unsecured Creditors was filed before this Tribunal in C.A.(CAA)-67/ND/2020 under Sections 230-232 of the Companies Act, 2013 and vide order dt. 22.12.2021, as modified by order dt. 07.01.2022, directions were issued by this Tribunal to convene a meeting of Secured Creditors of the Applicant Company No. 3. This Tribunal further dispensed with the requirement of the meeting of Equity Shareholders, Preference Shareholders and Unsecured Creditors of Applicant Company No. 3 and also dispensed with the requirement of the meeting of Equity Shareholders, Secured

Creditors and Unsecured Creditors of Applicant Company No. 1 and 2.

4. In compliance, individual notices were sent and newspaper publications dt. 25.01.2022 were made and the meeting was convened on 25.02.2022 wherein the Scheme was approved by the Secured Creditors of the Applicant Company No. 3 with requisite majority. Further, Chairperson's Report and the Scrutinizer's Report dt. 25.02.2022 was filed with this Tribunal.

5. The prayers in this Petition by way of Second Motion are for fixing a date of hearing as well as other consequential directions in terms of the provisions of the Section 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016. It is now hereby ordered as follows:

(i) **The Petition stands Admitted**.

(ii) **The date of hearing** of the Petition filed by the Applicant Companies for approval of the Scheme **is fixed for 27.05.2022.**

(iii) **Notice of the hearing shall be published in the newspapers** namely, "Business Standard" in English and "Business Standard" (in Hindi / vernacular language), circulated within the area where the registered office is situated or respondent resides or carrying on their business in not less than 40 days before the aforesaid date fixed for hearing.

6. In addition to the publication of the above Public Notice, the Applicant Companies shall individually serve the notices of this Petition to the following Authorities, namely:

(a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs,

(b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs,

(c) Registrar of Companies, Chandigarh, Ministry of Corporate Affairs,

(d) Official Liquidator, Delhi,

(e) Official Liquidator, Chandigarh,

(f) The Jurisdictional Income Tax Authorities,

(g) Securities and Exchange Board of India (SEBI)- Plot No.C4-A, 'G' Block Bandra-Kurla Complex, Bandra (East), Mumbai - 400051, Maharashtra;

(h) Bombay Stock Exchange Ltd. (BSE)- Phiroze Jeejeebhoy Towers, Dalal Street, Mumbai-400001;

(i) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme;

at least 40 days before the date fixed for hearing of this Petition.

7. That the Applicant Companies shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to the Newspaper publication effected as well as service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

8. Objections, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed to the

"SCHEME" contemplated by the Applicant Companies, failing which it will be considered by this Tribunal that there is no objection to approval of the "SCHEME" on the part of the Authorities, subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed there under being satisfied.

Sd/-

(HEMANT KUMAR SARANGI)
Member (T)

Sd/- 25-03-2022

(ABNI RANJAN KUMAR SINHA)
Member (J)